

Calendar Lines 3-4

Case Name: *Mizerski v. HCSG West LLC, et al.*

Case No.: 23CV428171

This is a representative action under the Private Attorneys General Act. Plaintiff Patrick Mizerski alleges that defendant HCSG West LLC and Healthcare Services Group, Inc. committed various wage and hour violations.

Before the Court is (1) Plaintiff's motion to compel further responses to requests for production ("RFP") Set three and sanctions; and (2) Plaintiff's motion to compel further responses to special interrogatories (SROG") Set two and sanctions, which are both opposed.

As discussed below, Plaintiff's motion to compel further responses to his RFPs is GRANTED, in part and MOOT, in part; Plaintiff's motion to compel further responses as to his SROGs is DENIED, in part and MOOT, in part. The parties' respective requests for sanctions are DENIED.

VI. BACKGROUND

According to the allegations of the operative Complaint, Defendant failed to: pay wages for all hours worked; pay overtime wages; provide compliant meal periods or compensation in lieu thereof; provide rest periods or compensation in lieu thereof; maintain accurate pay payroll records; pay sick wages; and reimburse for necessary business expenses.

Based on the foregoing, Plaintiff initiated this action on December 27, 2023, with the filing of the Complaint, which asserts one cause of action for civil penalties under PAGA.

VII. MOTION TO COMPEL FURTHER RESPONSES TO RFP, SET THREE

Plaintiff moves to compel further responses to RFP, Set Three Nos. 32 (work schedule), 33 (Aggrieved Employees' time records), 36 (training policies/procedures), 37 (training materials), 42 (Aggrieved Employees' payroll records), and 43 (Aggrieved Employees' wage statement records). (Motion, p. 2: 1-7.) He further moves for monetary sanctions in the amount of \$6,150.

C. Legal Standard

A party propounding a request for production may move for an order compelling a further response if it deems that a statement of compliance is incomplete, a representation of inability to comply is inadequate, or an objection is without merit. (Code Civ. Proc., § 2031.310, subd. (a).) The motion must set forth "specific facts showing good cause justifying the discovery sought by the demand." (Code Civ. Proc., § 2031.310, subd. (b)(1); *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98 (*Kirkland*).) Good cause is established simply by a fact-specific showing of relevance. (*Id.* at 98.) If good cause is shown, the burden shifts to the responding party to justify any objections. (*Ibid.*)

D. Meet and Confer

Code of Civil Procedure section 2031.310, provides, the motion “shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2031.310, subd. (b)(2).)

On April 30, 2025, Plaintiff propounded RFP, Set three and SROG, Set two on Defendant. (Declaration of Christine T. LeVu (“LeVu Dec.”), ¶ 2.) On April 13, 2026 and June 4, 2026, Defendant served supplemental responses as to RFP, Set three. (LeVu Decl., ¶ 8.)

The parties exchanged emails regarding their dispute about wage statement documents and on May 7, 2026, Plaintiff proposed a compromise and requested a 33% sample of wage statements. (LeVu Decl., ¶¶ 9-10.) However, Defendant rescinded its offer the following day and stated that it would only provide Plaintiff’s wage statements as a exemplar. (LeVu Decl., ¶ 10.) On May 14, 2026, the Court issued its order which granted Plaintiff leave to file the instant motion. (LeVu Decl., ¶ 11.) The parties met and conferred on June 24 and 29, 2026, however they were unable to resolve the dispute. (LeVu Dec., ¶¶ 12-14.) Plaintiff details sufficient meet and confer efforts. Plaintiff also filed three informal discovery conference (“IDC”) statements.

E. Discussion

The discovery sought by Plaintiff pertains to Set Three Nos. 32 (work schedule), 33 (Aggrieved Employees’ time records), 36 (training policies/procedures), 37 (training materials), 42 (Aggrieved Employees’ payroll records), and 43 (Aggrieved Employees’ wage statement records). (Motion, p. 2: 1-7.)

On April 13, 2026, Defendant provided a verified response that it would meet and confer regarding a limited sample of wage statements. (LeVu Decl., ¶ 8.) On May 1, 2026, Defendant responded to Plaintiff meet and confer email and stated,

Setting aside the fact that Plaintiff’s wage statement claim is merely a derivative one, and in turn, there is no relevancy to any wage statements, our prior agreement with Brooke, as you note below, was that **your side would make a proposal for the production of a sampling of wage statements after you had a change to review the electronic payroll data**, which you now had for months.
(LeVu Decl., ¶ 9; Exh. 8.)

On May 7, 2026, Plaintiff proposed a compromise and requested a 33% sample of the wage statements and provided Defendant with a list of Aggrieved Employees whom Plaintiff would accept as a sample. (LeVu Decl., ¶ 10.) However, the following day, Defendant rescinded its offer and would only produce Plaintiff’s wage statements as an exemplar. (*Ibid.*)

1. RFP No. 32

RFP No. 32 provides, “Please produce all work schedules for the AGGRIEVED EMPLOYEES during the RELEVANT TIME PERIOD.” Here, the work schedules are relevant to Plaintiff’s claims. Thus, Plaintiff establishes good cause for seeking these documents and the burden shifts to Defendant to justify any objections. (See *Kirkland, supra*, 95 Cal.App.4th at p. 98.)

Defendant's Second Supplemental Response identifies the undue burden of producing documents in response to RFP No. 32.

Indeed, it is not enough to just generally assert that responding to a request is unduly burdensome; a party objecting on this basis must make a *particularized* showing of facts demonstrating hardship, including *evidence* showing the quantum of work required to respond. (See *West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 417-418.) Here, Defendant provides the declaration of Matthew Schulman ("Schulman"), a Director of Operations for Defendant. Schulman states that Defendant does not have standardized practices or procedures for how employee schedules are made or maintained. (Schulman Decl. ¶ 6.) Since October 2022, Defendant has employed hourly employees at approximately 490 separate accounts, each with its own dedicated manager. (*Ibid.*) He further states that searching for scheduling records at hundreds of facilities would be a manual process and require an estimated 2,450 hours to 4,900 hours of employee labor. (Schulman Decl., ¶ 7.) Combined with the labor cost of approximately \$30/hour for managerial employees, the total estimated cost to attempt to gather responsive documents would be approximately \$73,500 to \$147,000. (*Ibid.*) Thus, Defendant justifies its objection to the request. Accordingly, Plaintiff's motion to compel further response is DENIED.

2. RFP Nos. 33 and 42

RFP Nos. 33 and 42 pertain to time and payroll records. Given the theories asserted in this action, these records are relevant.

Plaintiff's RFP defined "relevant time period" as "the time period of September 8, 2022 to the present." The supplemental responses Defendant provided cut-off on September 6, 2025. However, Defendant states that "[a]fter a diligent search and reasonably inquiry, Defendant is unable to produce any further 'time records' for such 'Aggrieved Employees' for the specified time because, as far as Defendant is aware, no further records have ever existed." (Plaintiff's Separate Statement, RFP, No. 33, Second Supp. Responses.) Moreover, Defendant contends the records after September 6, 2025 are "after-acquired documents." Generally, a responding party has no continuing duty to supplement an interrogatory answer with later-acquired information if the answer was initially correct and complete. (See Code Civ. Proc., § 2030.060, subd. (g); see also *Biles v. Exxon Mobil Corp.* (2004) 124 Cal.App.4th 1315, 1328-1329.) This lack of continuing duty is also implied for demands for inspection, as a propounding party may propound supplemental demands. (See Code Civ. Proc., § 2031.050.) Here, Defendant fails to establish that any unproduced records after September 6, 2025, were indeed after-acquired. The agreed upon PAGA period runs through the present. Thus, Defendant fails to show that the necessary records were not within its possession, custody, or control by June 4, 2026.

Nevertheless, on June 30, 2026, Plaintiff served supplemental requests for production of documents ("Supp. RFP"), which provides "Please review your responses to all demands and for inspection and production of documents previously served on you in the action and produce for inspection, photographing, and copying *any later-acquired or discovered* documents in response thereto." (Declaration of Remy Kessler ("Kessler Decl."), Exh. 2 [emphasis added].) Defendant states it "is in the process of responding to the Supplemental Requests and is gather documents after September 5, 2025 to comply with its discovery obligations." (Opp., p.8:17-24.) Thus, it appears the motion is MOOT as to these requests.

3. RFP Nos. 36-37

RFP No. 36, requests, “[f]or the RELEVANT TIME PERIOD, produce all DEFENDANT’S training policies and procedures applicable to the AGGRIEVED EMPLOYEES.” RFP No. 37, requests, “[f]or the RELEVANT TIME PERIOD, produce all training materials provided by DEFENDANT to the AGGRIEVED EMPLOYEES.”

In its opposition, Defendant contends that it has produced the responsive documents. (Opp., pp. 11:25-12:3.) In reply, Plaintiff argues the responses are non-compliant because they seek to narrow the scope of the training policies to “in service training” only. (Reply, p. 2:25-27.) After reviewing Defendant’s Fourth Supplemental Responses (see LeVu’s Declaration in Support of Plaintiff’s Reply, Exh. 13), the Court agrees. The requests pertain to *all training* materials and without explanation, Defendant narrowed the scope. Thus, Plaintiff’s motion as to RFP Nos. 36-37 is GRANTED. Defendant is ordered to provide verified supplemental responses within 20 days of this order specifying whether the “in service” training materials constitute all responsive training materials. If they do not, Defendant shall produce all responsive documents within 30 days of this order.

4. RFP No. 43

RFP No. 43, requests, “[a]ll copies of the actual wage statements that were provided to the AGGRIEVED EMPLOYEE during the RELEVANT TIME PERIOD.”

Plaintiff requests a 33% sample, however, Defendant contends that this would require production of approximately 70,000 wage statements. (Opp., p. 9:22-24.) Defendant further contends that each wage statement will require individual redactions and it is not proportionate to the needs of the case, especially considering the discovery that has already been produced. (for over 6,400 employees). The Court agrees that 33% is excessive here. However, the Court will require Defendant to produce a limited sample of wage statements selected by Plaintiff so that Plaintiff can verify facial compliance with Labor Code section 226, subd. (a).

Thus, Plaintiff’s motion to compel further responses as to RFP No. 43 is GRANTED. Within 10 days of this order, Plaintiff shall provide the list of employees to Defendant and in turn, within 30 days of this order, Defendant shall produce the wages statements to Plaintiff.

5. Sanctions

Here both parties move for sanctions against the other.

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300, subd. (d); see also Code Civ. Proc., § 2031.310, subd. (h) [same]; § 2033.290, subd. (d) [same].) “[T]he phrase ‘substantial justification’ has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (*Doe v. United States Swimming, Inc.* (2011) 200 Cal.App.4th 1424, 1434 (*Doe*).)

i. Plaintiff’s Request

Plaintiff seeks sanctions in the amount of \$6,150. Plaintiff argues Defendant cannot claim substantial justification for failing to provide discovery responses. In opposition, Defendant contends that it met and conferred with Plaintiff in good faith; attempted to resolve the disputes without involving the Court. (Opp., p. 11:6-14.) Here, Defendant provided responses or informed Plaintiff that it would be providing responses and subsequently served supplemental responses at least twice. Therefore, the Court cannot conclude that Defendant acted without substantial justification. Consequently, the Court finds that sanctions are not warranted. Plaintiff's request is DENIED.

ii. Defendant's Request

Defendant requests \$4,640 in sanctions against Plaintiff and his counsel for unnecessarily bring discovery motions. (Opp., p. 13:5-11.) Here, Plaintiff details sufficient meet and confer efforts and provides evidence of communications and efforts to resolve the disputes. The Court finds Plaintiff acted with substantial justification. Consequently, sanctions against Plaintiff and his counsel are not warranted. Consequently, Defendant's request for sanctions is DENIED.

VIII. MOTION TO COMPEL FURTHER RESPONSES SROG SET TWO

Plaintiff moves for an order compelling further responses to SROG Nos. 24 (PAGA List), 37 (pay codes), and 38 (pay explanations).

A. Legal Standard

A party propounding interrogatories and requests for admission may move for an order compelling further responses if it deems an answer is evasive or incomplete and/or an objection is without merit or too general. (Code Civ. Proc., §§ 2030.300, subd. (a) and 2033.290, subd. (a).) The statutes do not require any showing of good cause in support of such a motion. (See *id.*, §§ 2030.300 and 2033.290; see also *Coy v. Superior Court* (1962) 58 Cal.2d 210, 220–221 (*Coy*).) The burden is on the responding party to justify any objections or failure to fully answer. (*Coy, supra*, 58 Cal.2d at pp. 220–221.) Objections must be tailored to each discovery request. (*Scottsdale Inc. Co. v. Super. Ct.* (1997) 59 Cal.App.4th 263, 275; *Standon Co. v. Super. Ct.* (1990) 225 Cal.App.3d 898, 901 [construing the objection of “vague, ambiguous, and unintelligible” as a nuisance objection].)

B. Meet and Confer

Code of Civil Procedure section 2030.300, provides, the motion “shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2030.300, subd. (b)(1).)

As detailed above, Plaintiff filed three IDC statements and attempted to meet and confer with Defendant regarding the outstanding discovery. On May 14, 2026, the Court issued an order permitted Plaintiff to file the instant motion. Thus, the Court finds sufficient meet and confer efforts.

C. Discussion

Plaintiff moves for an order compelling further responses to SROG Nos. 24 (PAGA List), 37 (pay codes), and 38 (pay explanations).

1. SROG No. 24

SROG No. 24 pertains to the PAGA Group List and provides, “please IDENTIFY in electronic manipulable spreadsheet format, all AGGRIEVED EMPLOYEES.”

Defendant states it has provided supplemental responses referencing the production of job titles, rates of pay, and dates of employment. (Opp., p. 7:20-21.)

Thus, Plaintiff’s motion as to SROG No. 24 is MOOT.

2. SROGS No. 37-38 (pay codes and explanations)

SROG No. 37 provides, “please state all pay codes used by DEFENDANT on wage statements provided to the AGGRIEVED EMPLOYEES...” SROG No. 38, provides, “for each pay code listed in response to Special Interrogatory No. 37, please provide an explanation regarding what each pay code means.”

Defendant argues it has sufficiently responded because the wage statements use “Earnings descriptions” and it has identified and explained. Defendant further argues that Plaintiff attempts to rewrite the interrogatories. (Opp., pp. 7:26-8:20.) Here, the SROGS clearly request pay codes “used by DEFENDANT on wage statements provided to AGGRIEVED EMPLOYEES.” Thus, Defendant has provided code-compliant responses. If Plaintiff seeks other forms of wage information, it may accordingly propound discovery, however, the Court declines to compel Defendant to provide further responses to an interrogatory that was not asked.

Accordingly, Plaintiff’s motion to compel further responses to SROGS Nos. 37-38 is DENIED.

3. Sanctions

Both parties move for sanctions.

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300, subd. (d).) “[T]he phrase ‘substantial justification’ has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (*Doe, supra*, 200 Cal.App.4th at p. 1434.)

i. Plaintiff’s Request

Plaintiff moves for sanctions in the amount of \$5,500 on the grounds that Defendant’s failure to response to the requests were without merit. As explained about, the Court was

persuaded by Defendant's arguments regarding SROG Nos. 37 -38. Thus, it finds that Defendant acted with substantial justification. Thus, Plaintiff's request for sanctions is DENIED.

ii. Defendant's Request

Defendant moves for sanctions against Plaintiff and his counsel in the amount of \$4,262 based on misuse of the discovery process.

The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

(Code Civ. Proc. § 2023.030, subd. (a).)

The Court finds that Plaintiff acted with substantial justification and therefore, sanctions are not warranted here. Thus, Defendant's request for sanctions is DENIED.

IX. CONCLUSION

Plaintiff's motion to compel further responses to RFP Nos. 33 and 42 is MOOT; DENIED as to No. 32; it is GRANTED as to Nos. 36, 37, & 43; and the parties' respective requests for sanctions are DENIED. Plaintiff's motion to compel further responses as to SROG No. 24 is MOOT; DENIED as to SROG Nos. 36-37; and the parties' respective requests for sanctions are DENIED.

The Court will prepare the order.

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Calendar Line 5

Case Name: *Villalobos v. R-Bros. Painting, Inc., et al.*

Case No.: 24CV438933

This is a representative action under the Private Attorneys General Act (“PAGA”). Plaintiff Juan Manuel Villalobos alleges defendants R-Bros. Painting, Inc. (“R-Bros.”), R. Brothers Waterproofing, Inc. (“R. Brothers Waterproofing”), Rod Rodriguez (“Rodriguez”) committed various wage and hour violations.

Before the Court is Plaintiff’s motion for approval of PAGA settlement, which is unopposed. As discussed below, the Court GRANTS the motion.

I. BACKGROUND

According to the allegations of the operative Complaint, Plaintiff was employed by R-Bros. as a painter from May 2023 through his termination in January 2024. (Complaint, ¶ 8.) During his employment, Plaintiff was classified as an hourly, non-exempt employee. (*Ibid.*) Defendants failed to, among other things: compensate for all hours worked; pay minimum and overtime wages; provide rest breaks or compensation in lieu thereof; provide meal breaks or compensation in lieu thereof; reimburse for necessary business expenses.

Based on the foregoing, Plaintiff initiated this action on May 14, 2024, with the filing of the Complaint, which asserts the following causes of action: (1) failure to compensate for all hours worked; (2) failure to pay minimum wages; (3) failure to pay overtime (4) failure to provide accurate wage statements; (5) failure to pay wages owed every pay period; (6) failure to give rest breaks; (7) failure to give meal breaks; (8) failure to reimburse for business expenses; (9) failure to pay wages when employment ends; (10) PAGA; and (11) violation of Business & Professions Code section 17200.

Plaintiff now moves for an order approving the PAGA settlement agreement between Plaintiff, R-Bros Painting and Rodriguez (collectively, “Defendants”).

II. LEGAL STANDARD FOR APPROVING PAGA SETTLEMENT

Under PAGA, an aggrieved employee may bring a civil action personally and on behalf of other current or former employees to recover civil penalties for Labor Code violations. (*Iskanian v. CLS Transp. Los Angeles, LLC* (2014) 59 Cal.4th 348, 380, overruled on other grounds by *Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639 [2022 U.S. LEXIS 2940].) 75 percent of any penalties recovered go to the Labor and Workforce Development Agency (LWDA), leaving the remaining 25 percent for the employees. (*Ibid.*) PAGA is intended “to augment the limited enforcement capability of [LWDA] by empowering employees to enforce the Labor Code as representatives of the Agency.” (*Id.* at p. 383.) A